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Attorneys for Plaintiff

Electronically FILED by Superior Court of California, County of Los Angeles 12/16/2025 3:08 PM David W. Slayton, Executive Officer/Clerk of Court, By D. Diaz, Deputy Clerk

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – CENTRAL DISTRICT

FOX NORMANDIE APARTMENTS, LP Plaintiff, vs. **DERRICK L. BEVERLY**, an individual; and DOES 1 to 5, Defendant	Case Number: **22 STUD 06657** **NOTICE OF RULING RE EX PARTE APPLICATION; NOTICE OF ORDER TO SHOW CAUSE HEARING RE: SANCTIONS AGAINST DEFENDANT** **Dept.:** 91 **Ex Parte Hearing: December 11, 2025**

TO DEFENDANTS AND TO THEIR COUNSEL OF RECORD, IF ANY:

PLEASE TAKE NOTICE that the Court heard Defendant's Ex Parte Application for Temporary Stay on December 11, 2025, at 1:30 p.m. Counsel for Plaintiff, Law Offices of Ada R. Cordero-Sacks, appeared via LACourtConnect. Defendant appeared in person. Defendant's ex parte application was DENIED. Further, the Court set an Order to Show Cause Re: Sanctions Against Defendant for January 20, 2026, at 8:30 a.m. in Department 91 of the Stanley Mosk Courthouse. Plaintiff is to file and serve any briefs, declarations, and supporting documents with regard to the OSC hearing no later than close of business, or 5:00 p.m. on January 8, 2025. A true and correct copy of the Court's Minute Order is attached hereto as "**Exhibit A**." Plaintiff give Notice.

DATED: December 16, 2025

Respectfully submitted,

BY _____
Tracey L. Merrell, Esq.
Attorney for Plaintiff

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EXHIBIT A
DEC. 11, 2025 MINUTE ORDER

SUPERIOR COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil Division

Central District, Stanley Mosk Courthouse, Department 91

22STUD06657 December 11, 2025
FOX NORMANDIE APARTMENTS, LP vs DERRICK L. BEVERLY 1:30 PM

Judge: Honorable Mike H. Madokoro
Judicial Assistant: B. Colocho
Courtroom Assistant: None

CSR: None
ERM: Proceedings Electronically Recorded
Deputy Sheriff: A. Alvarez

APPEARANCES:

For Plaintiff(s): Tracey Merrell for Ada R Cordero-Sacks via LACourtConnect

For Defendant(s): Derrick L. Beverly (Self-Represented)

NATURE OF PROCEEDINGS: Hearing on Ex Parte Application for temporary stay

The matter is called for hearing.

The Court has read and considered all documents filed herein connection regarding Defendant's Ex Parte Application for temporary stay.

Counsel for Plaintiff appears in opposition.

Parties are given the opportunity to argue.

After reading and considering all moving papers filed, and hearing oral argument, the Court makes its Final Ruling as follows:

The Ex Parte Application for temporary stay filed by Derrick L. Beverly on 12/11/2025 is Denied.

Defendant brings an Ex Parte Application with regard to a default judgment that was entered on November 29, 2022, and enforced by lockout on January 2, 2023. However, the relief sought by Defendant is not only vague, but he provides no factual support or testimony by way of declaration or affidavit to support his position. There is reference to a Declaration of Derrick Lamont Beverly along with references to other Declamations and Exhibits A-H, none of these purported documents were submitted in support of Defendant's present current Ex Parte Application.

Moreover, there is no declaration of notice for the Ex Parte Application. Based on the failure to file a declaration establishing proper notice of the Ex Parte hearing as required by California Rule of Court 3.1204, Defendant's Ex Parte Application is denied.

SUPERIOR COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil Division

Central District, Stanley Mosk Courthouse, Department 91

22STUD06657 December 11, 2025
FOX NORMANDIE APARTMENTS, LP vs DERRICK L. BEVERLY 1:30 PM

Judge: Honorable Mike H. Madokoro
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Courtroom Assistant: None

CSR: None
ERM: Proceedings Electronically Recorded
Deputy Sheriff: A. Alvarez

The court has received numerous Ex Parte Applications filed by Defendant, each of which seeks no specific meaningful relief, were not supported by any facts, authority, declarations, or affidavits, and were not accompanied by a declaration establishing proper notice of the Ex Parte hearing as required by California Rule of Court 3.1204, and as set forth in this Court's 5th Amended Standing Order, dated June 1, 2021.

On October 21, 2025, the Court provided that should Defendant file another Ex Parte Application that fails to provide any specific relief sought, fails to provide proper notice, or results in a denial based on such procedural grounds, this court will consider setting a hearing on an Order to Show Cause re Sanctions upon Plaintiff's request. As Plaintiff has made such request, this Court orders a hearing on an order to show cause as to why sanctions should not be imposed upon Defendant for filing numerous inappropriate and insufficient motions to set aside judgment as follows:

Order to Show Cause Re: Sanctions Against Defendant is scheduled for 01/20/2026 at 08:30 AM in Department 91 at Stanley Mosk Courthouse.

Plaintiff is ordered to serve and file any briefs, declarations, and supporting documents with regard to this order to show cause hearing no later than January 8, 2025, close of business (5:00 p.m.).

Plaintiff to give notice.

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West Hills, CA 91304
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PROOF OF SERVICE

COUNTY OF LOS ANGELES, STATE OF CALIFORNIA:

I am employed in the County of Los Angeles, State of California. I am over the age of 18 and not a party to the within action. My business address is: 8399 Topanga Canyon Blvd., Suite 304, West Hills, CA 91304

On **December 16, 2025,** I served the foregoing document described **NOTICE OF RULING RE EX PARTE APPLICATION; NOTICE OF ORDER TO SHOW CAUSE HEARING RE: SANCTIONS AGAINST DEFENDANT** in this action by placing [X] the original [ ] a true and correct copy therefore enclosed in a sealed envelope with postage thereon fully prepaid, in the United States mail at Los Angeles, California addressed as follows:

DERRICK L. BEVERLY
1738 N. Las Palmas Avenue
Los Angeles, CA 90028
Email: derniercrilamont@yahoo.com;

[X] [BY MAIL] Pursuant to CCP § 1013(a) and under firm practice said envelope would be deposited with the U.S. Postal Service on the same day with postage thereof fully prepaid at West Hills, California in the ordinary course of business. I am readily familiar with the Law Offices of Ada R. Cordero-Sacks ordinary business practice of collection and processing correspondence for mailing. I followed this business practice, and I placed the envelope for collection and mailing on the date identified above. I am aware that on a motion of the party served, service is presumed invalid if postage cancellation date or postage date is more than one day after date of deposit for mailing in affidavit. I deposited such envelope in the U.S. mail at West Hills, California.

[ ] United States Postal Service Next Day Shipping

[ ] [BY PERSONAL SERVICE] I caused our process server to deliver such envelope by hand to the address above.

[X] [ELECTRONIC SERVICE] I caused said document(s) to be transmitted to the email address(es) of the addressee(s) designated.

[X] [STATE] I declare under penalty of perjury under the laws of the State of California that the above is true and correct

DATED: December 16, 2025

Karina Medina